

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 294 of 2018

Md. Biplob

.....Convict-appellant.

-Versus-

The State

.....Respondent.

No one appears.

.....For the convict-appellant.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.

.....For the respondent

Judgment on 29.01.2024.

Sheikh Abdul Awal, J:

This Criminal Appeal at the instance of the convict appellant, Md. Biplob is directed against the judgment and order of conviction and sentence dated 04.10.2017 passed by the learned Additional Sessions, Judge, 1st Court, Jhenaidah in Sessions Case No. 189 of 2010 arising out of G.R. No. 254 of 2009 corresponding to Kaligonj Police Station Case No. 15 dated 11.12.2009 convicting the accused appellant under table 1(Ka) of Section 19(1) of the Narcotics Control Act, 1990 and sentencing him thereunder to suffer rigorous imprisonment for a period of 2(two) years and to pay a fine

of Taka 2,000/-(two thousand) in default to suffer simple imprisonment for 2 (two) month more.

No one appears.

In view of the fact that this petty old criminal Appeal arising out of 2(two) years sentence has been dragging before this Court for more than 5 years, I am inclined to dispose of the same.

At the time of pronouncement of judgment, it appears from the record that this Court on 23.01.2018 at the time of admission of appeal granted bail to the accused appellant for a period of 01(one) year, which was lastly extended on 09.01.2019 for a period of 06(six) six months and thereafter, no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 09.07.2019. In that view of the matter, I have no hesitation to hold that the convict appellant is a fugitive from law and justice.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC where it has been observed by the Appellate Division that Court would not act in aid of an accused person who is a fugitive from law and justice.

In view of the above, this Appeal must fail.

In the result, the appeal is dismissed. The convict-appellant, Md. Biplob is directed to surrender his bail bond

within 3 (three) months from today to suffer his sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict appellant.

Send down the lower Court records at once.